DDT ENGINEERING AND LOGISTICS

Versus

ZIMBABWE REVENUE AUTHORITY

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 1 AUGUST AND 23 SEPTEMBER 2025

Court Application

S. Banda with Mr T Tashaya, for the applicant
T. L. Marange, for the respondent

NDUNA J*:* - The background to this case is very simple. The applicant is into transport business. On a date they did not disclose, but in December 2021, the applicant hired its vehicle; an *International 9800i Horse Registration Number LL28THGP* and whose trailers are Registration Number *KKS570MP/KKS571MP* to one Partial Jeche. On the 7th of December 2021, the truck was intercepted at the border laden with prohibited goods which were marked for exportation.

Upon its seizure, the truck was issued with a *Notice of Seizure Form number 008533* and the goods so smuggled were issued with the *Notice of seizure number 008534*. The driver of the truck fled and evaded arrest. On 25th of December 2021, the Respondent's manager wrote the applicants a letter in which it was advised that their vehicle had been forfeited to the state or to ZIMRA. It was advised that the vehicle had been forfeited in terms of *Section 193(1) and (2) of the Customs and Excise Act [Chapter 23:02].*

For the avoidance of doubt, *Section 193(1) and (2)* provides as follows: -

> ***193 Procedure as to seizure and forfeiture***
>
> *(1) Subject to subsection (3), an officer may seize any goods, ship, aircraft or vehicle (hereinafter in this section referred to as articles) which he has reasonable grounds for believing are liable to seizure.*

"contraband cigarettes" means cigarettes liable to seizure;

(2) In this section—

"duty" includes any import tax which is payable in terms of the Value Added Tax Act [Chapter 23:12].

"goods" includes Zimbabwean and foreign currency;

"liable to seizure", in relation to articles, means articles

(a) liable to forfeiture under this Act or any other law relating to customs or excise; or

(b) the subject matter of an offence under or a contravention of any provision of—

(i) this Act or any other law relating to customs or excise; or

(ii) any enactment prohibiting, restricting or controlling the importation or exportation thereof;

notwithstanding the fact that no person has been convicted of such offence or contravention.

In addition to *section 193*, we have *section 188* which also empowers the customs officers to seize and forfeit any vehicle which would have been used for smuggling and goods. *Section 188(1) and (2)* is provided as follows; -

188 Goods and ships, aircraft, vehicles or other things liable to forfeiture

(1) Any goods which are the subject matter of an offence under this Act shall be liable to forfeiture.

(2) Any ship, aircraft, vehicle or other thing used for the removal of goods which—

(a)are liable to forfeiture; or

(b)are being exported or have been imported or otherwise dealt with contrary to or not in accordance with—

(i) the provisions of this Act or any other law relating to customs or excise; or

(ii) any enactment prohibiting, restricting or controlling the importation or exportation of such goods; shall itself be liable to forfeiture.

It is hereby declared that the seizure of the said vehicle was done, *prima facie,* in terms of the law. It was found to have been smuggling the goods in question.

When the customs officer has taken seizure of any thing at the border he issues a Notice of Seizure. The Notice of seizure advises of the seizure of the goods in question

and goes on to advise the persons involved of what to do. The Notice of Seizure herein provided that the applicants were to proceed and do the following: -

a) Within three months submit written representations to the office of the Station manager as to why they feel the vehicles so seized should not be forfeited to the state
b) That they are also advised to institute proceedings for the recovery of the goods within three months of the date of the notice in terms of *section 196 of the Act.*

It is important to restate the provisions of *Section 196* of the *Act*: -

196 Notice of action to be given to officer

(1) No civil proceedings shall be instituted against the State, the Commissioner or an officer for anything done or omitted to be done by the Commissioner or an officer under this Act or any other law relating to customs and excise until sixty days after notice has been given in terms of the State Liabilities Act [Chapter 8:15].

(2) Subject to subsection (12) of section one hundred and ninety-three, any proceedings referred to in subsection (1) shall be brought within eight months after the cause thereof arose, and if the plaintiff discontinues the action or if judgment is given against him, the defendant shall receive as costs full indemnity for all expenses incurred by him in or in respect of the action and shall have such remedy for the same as any defendant has in other cases where costs are given by law

What it follows is that any failure to institute the relevant proceedings within the prescribed times, renders the decision of the manager final.

Now coming to this application, the respondent has taken issue with the prescriptive condition as contained in the act. It provides that failure to act within the given times the decision to forfeit the goods becomes final.

I now attend to the said times. The act gives out that the applicant was supposed to give notice of its intention to sue of not less than sixty days. It is clear there was a failure to abide by this requirement. Further it is the provision of the law that any litigation should be brought up within (8) eight months of the date the goods in question are forfeited to the state. It does not need any mathematician to tell us that there is a total failure by the applicant to beat these deadlines.

The above-mentioned provision is a peremptory provision if one considers the use of the word “shall” which must be adhered to. It is trite that failure by the applicant

to adhere to the provision and failure to issue notice and waiting out the notice period is fatal to the applicant's application. For that reason, there will be no application before the court.

In the case of *Machacha v ZIMRA HB 186/20111*, NDOU J explained the reason for the need to give the required notice of intention to sue. The learned judge stated:

> *The applicant ignored this provision at his own peril. The primary objective of the provision is provision of timely opportunity to the Zimbabwe Revenue Authority ("ZIMRA") to know and therefore to investigate the material facts upon which its actions are challenged and to afford ZIMRA opportunity of protecting itself against the consequences of possible wrongful action by tendering early amends as envisaged by the Act – Ebrahim v Controller of Customs 1985 (2) ZLR 1 (SC); Building and Engineering Supply Co. (Pvt) Ltd v Controller of Customs 1988 (1) ZLR (HC) and Car Rental Services (Pvt) Ltd v Director of Customs and Excise 1988 (1) ZLR 402 (SC). The failure to give this notice is fatal as the applicant is effectively barred from instituting proceedings for recovery of the motor vehicle unless of course if the Commissioner is prepared to waive or extend the period*…"
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> In *Betty Dube v ZIMRA HB-2/14*, the court had this to say:
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> *These provisions expressly and directly prohibit any litigation against the State, Commissioner or any officer, for anything done or omitted to be done by the state and named officials under the Customs and Excise Act or any other law for that matter relating to customs without the requisite notice being given…She has instituted proceedings to be declared as qualified for the immigrant's rebate in respect of the goods detained by the officers contrary to the prohibition of the law. That is void and of no effect.* INNES CJ *stated in Schierhout v Minister of Justice 1926 AD 99 at 109 that:-*
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> > *'It is a fundamental principle of our law that a thing done contrary to the direct prohibition of the law is void and of no effect.'"*

Therefore, clearly the failure to abide by this provision makes their case liable for dismissal.

It is also apparent that the applicants have proceeded with their application well after the eight months given by the statute. This makes their application bad at law and liable to be dismissed by the court.

Accordingly, the following is hereby ordered:

1. The application is accordingly struck of the roll

2. The applicant is ordered to meet the costs of the Respondent on an ordinary scale.

Sengweni Legal Practice, applicant's legal practitioners
Zimbabwe Revenue Authority. Legal Services Division, respondent's legal practitioners